

regulation 219 to the municipal building surveyor or private building surveyor for such a maintenance schedule to be prepared.

221 Building surveyor must give owner copy of maintenance schedule

The municipal building surveyor or private building surveyor who prepares or updates a maintenance schedule in relation to a building or place of public entertainment under regulation 218 or 220 must give a copy of the maintenance schedule to the owner of the building or place without delay.

222 Maintenance schedules

- (1) For the purposes of regulation 218, a maintenance schedule must list all essential safety measures required to be provided in a building or place of public entertainment by an occupancy permit or a maintenance determination and the maintenance requirements for those essential safety measures.
- (2) For the purposes of regulation 220, a maintenance schedule must list all essential safety measures required to be provided in a building or place of public entertainment by or under the Act or these Regulations or any previous corresponding Act or regulations.
- (3) The essential safety measures and related maintenance requirements must be listed in chronological order according to the date on which each essential safety measure was required to be provided by or under the Act or these Regulations or any previous corresponding Act or regulations.
- (4) A maintenance schedule under this regulation must be prepared in a form approved by the Authority.

- (5) In this regulation ***maintenance requirements*** in relation to an essential safety measure consist of—
- (a) the level of performance that the essential safety measure must achieve to fulfil its purpose; and
 - (b) the frequency and type of inspection, testing and maintenance required for the essential safety measure.

Subdivision 4—Reporting and records

223 Owner must prepare annual essential safety measures report

- (1) The owner of a building or place of public entertainment in respect of which an essential safety measure is required to be provided in the building or place by an occupancy permit or a maintenance determination must ensure that an annual essential safety measures report is prepared in accordance with regulation 224 within 28 days before each anniversary of the relevant anniversary date.

Penalty: 20 penalty units.

- (2) The owner of a building or place of public entertainment that was constructed before 1 July 1994, in respect of which an essential safety measure was required to be provided in the building or place by the Act or these Regulations or any previous corresponding Act or regulations, must ensure that an annual essential safety measures report is prepared in accordance with regulation 224 within 28 days before 13 June 2018 and each anniversary of that date.

Penalty: 20 penalty units.

(3) Subregulation (2) does not apply in relation to any essential safety measure in respect of which an annual report is required to be prepared under subregulation (1).

(4) In this regulation—

anniversary date means the earlier of the following dates—

- (a) the date of issue of the first occupancy permit or amendment to an occupancy permit that required that an essential safety measure be provided in the building or place of public entertainment;
- (b) the date of making of the first maintenance determination which required that an essential safety measure be provided in the building or place of public entertainment.

224 Contents and form of annual essential safety measures report

For the purposes of regulation 223, the annual essential safety measures report for a building or place of public entertainment must—

- (a) be in a form approved by the Authority; and
- (b) be signed by the owner of the building or place; and
- (c) state the address of the building or place; and
- (d) include the details of any inspection report made under section 227E of the Act in relation to an essential safety measure in the building or place; and

- (e) if applicable, state that the owner of the building or place, in accordance with regulation 196 or 217, is complying with AS 1851—2012 in relation to an essential safety measure required to be provided in the building or place, instead of the frequency and type of inspection, testing and maintenance required for the essential safety measure specified in the relevant occupancy permit or the maintenance determination (as the case requires); and
- (f) state that the owner has taken all reasonable steps to ensure that each essential safety measure in the building or place—
 - (i) is operating and has been maintained in a state that enables the essential safety measure to fulfil its purpose; and
 - (ii) has been inspected, tested and maintained in accordance with the Act and these Regulations.

225 Records relating to essential safety measures must be made available

An owner of a building or place of public entertainment must ensure that the following documents relating to the building or place are available for inspection at that building or place within 24 hours after a request by the municipal building surveyor or chief officer to inspect the documents—

- (a) all annual essential safety measures reports prepared under these Regulations, or any previous corresponding regulations, within 10 years before the request; and
- (b) all maintenance schedules in relation to the essential safety measures in the building or place; and

- (c) all maintenance determinations requiring an essential safety measure to be provided in the building or place; and
- (d) the records of all inspections, testing and maintenance (including repairs) of any essential safety measure in the building or place.

Penalty: 20 penalty units.

226 Maintenance responsibility of owner of building or place of public entertainment

- (1) The owner of a building or place of public entertainment must ensure that any essential safety measure required to be provided in relation to the building or place by or under the Act or any previous corresponding Act is maintained in a state which enables the essential safety measure to fulfil its purpose.

Penalty: 20 penalty units.

- (2) An owner of a building or place of public entertainment does not commit an offence under subregulation (1) if—
 - (a) the essential safety measure is subject to a maintenance determination; or
 - (b) the building or place is subject to an occupancy permit which imposes a condition on the occupier to maintain the essential safety measure and the owner occupies the building or place.

227 Essential safety measures not to be removed from approved locations

The owner of a building or place of public entertainment must ensure that any essential safety measure required to be provided in relation to the building or place by or under this Act or any previous corresponding Act is not removed from

its approved location except for the purpose of inspection or testing of, or the carrying out of maintenance on, that essential safety measure.

Penalty: 20 penalty units.

Division 2—Maintenance of exits and paths of travel relating to buildings or places of public entertainment

228 Maintenance of exits and paths of travel by occupiers of buildings or places of public entertainment

The occupier of a Class 1b, 2, 3, 5, 6, 7, 8 or 9 building or place of public entertainment must ensure that—

- (a) all exits in the building or place; and
- (b) any paths of travel to exits in the building or place; and
- (c) any paths of travel on the allotment from exits in the building or place to a road—

required to be provided in relation to that building or place are kept readily accessible, functional and clear of obstructions so that egress from the building or place is maintained.

Penalty: 20 penalty units.

Part 16—Existing buildings

Division 1—Change of use of existing buildings

229 Change of use

- (1) A person must not change the use of a building or place of public entertainment unless the building or place of public entertainment complies with the requirements of these Regulations applicable to the new use.

Penalty: 20 penalty units.

- (2) Despite subregulation (1), the municipal building surveyor may exempt a building or place of public entertainment from compliance with any of these Regulations applicable to the new use.
- (3) In deciding whether to grant an exemption under subregulation (2) the municipal building surveyor must take into account—
 - (a) the structural adequacy of the building or place of public entertainment; and
 - (b) the requirements necessary to make reasonable provision for—
 - (i) the amenity of the building or place and the safety and health of people using the building or place; and
 - (ii) avoiding the spread of fire to or from any adjoining building.
- (4) An exemption granted under subregulation (2) must be in the form of Form 18.
- (5) This regulation applies in addition to any other requirements in the Act or these Regulations that apply because of the change of use of a building or place of public entertainment.

230 Private building surveyor may exercise functions of municipal building surveyor under regulation 229

A private building surveyor may exercise the functions of the municipal building surveyor under regulation 229 in the case of a building or place of public entertainment for which the private building surveyor has been appointed to issue an occupancy permit.

Division 2—Subdivision of existing buildings

231 Subdivision of existing building

- (1) Subject to regulation 233, if an existing building, whenever constructed, is subdivided, each building resulting from the subdivision must be brought into conformity with these Regulations.
Penalty: 20 penalty units.
- (2) Despite subregulation (1), the municipal building surveyor may exempt a building from all or any of the requirements of subregulation (1).
- (3) In deciding whether to grant an exemption under subregulation (2) the municipal building surveyor must take into account—
 - (a) the structural adequacy of any building to which the exemption applies; and
 - (b) the requirements necessary to make reasonable provision for—
 - (i) the amenity of any building and the safety and health of people using any building to which the exemption applies; and
 - (ii) avoiding the spread of fire to or from any adjoining building.
- (4) An exemption granted under subregulation (2) must be in the form of Form 18.

232 Private building surveyor may exercise functions of municipal building surveyor under regulation 231

A private building surveyor may exercise the functions of the municipal building surveyor under regulation 231 in the case of building work for which the private building surveyor has been appointed to issue a building permit.

Division 3—Alterations

233 Alteration to existing building

- (1) Building work to alter an existing building must comply with these Regulations.
- (2) Subject to regulations 234 and 236, if the proposed alterations to an existing building, together with any other alterations completed or permitted within the previous 3 years, relate to more than half the original volume of the building, the entire building must be brought into conformity with these Regulations.
- (3) Despite subregulations (1) and (2) and subject to subregulation (6), the relevant building surveyor may consent to partial compliance of building work or an existing building with subregulation (1) or (2).
- (4) In determining whether to consent to partial compliance with subregulation (1) or (2) in respect of any alteration to a building, the relevant building surveyor must take into account—
 - (a) the structural adequacy of the building; and
 - (b) the requirements necessary to make reasonable provision for—
 - (i) the amenity of the building and the safety and health of people using the building; and

- (ii) avoiding the spread of fire to or from any adjoining building.
- (5) Any consent to partial compliance under subregulation (3) must be in the form of Form 18.
- (6) If any part of the alteration is an extension to an existing building, the relevant building surveyor may only consent to partial compliance in respect of the extension if the floor area of the extension is not greater than the lesser of—
 - (a) 25% of the floor area of the existing building; and
 - (b) 1 000 m².

234 Alterations affecting exits and paths to exits

- (1) If a proposed alteration to an existing building other than a Class 1 or 10 building would adversely affect any exit or path of travel to an exit, the building must comply with Section D of the BCA Volume One.
- (2) The relevant building surveyor may consent to partial compliance of a building with subregulation (1).
- (3) In determining whether to consent to partial compliance with subregulation (1), the relevant building surveyor must take into account the requirements necessary to make reasonable provision for—
 - (a) the amenity of the building; and
 - (b) the safety and health of people using the building.
- (4) Any consent to partial compliance under subregulation (2) must be in the form of Form 18.

235 Extension of non-complying external wall

Despite anything to the contrary in these Regulations, a single storey external wall (including any openings) of a Class 1 building may be extended, once, a maximum of 6 m measured horizontally in similar construction without the extension of the wall complying with performance requirement P2.3.1 of the BCA Volume Two.

236 Application of requirements in the BCA Volume One relating to access to buildings for persons with disabilities

- (1) Subject to subregulation (4), if an existing building is to contain a new part that must comply with an access provision, any affected part of the building must be brought into conformity with that access provision.

Note

This provision aligns the operation of these Regulations (which incorporates the BCA Volume One) with the Disability (Access to Premises — Buildings) Standards 2010 of the Commonwealth. The Disability (Access to Premises—Buildings) Standards 2010 apply the requirements of the Access Code contained in those Standards (being building requirements relating to access to buildings and associated facilities and services for persons with a disability), not only to new parts of buildings but also to the affected parts of buildings that contain new parts. Affected parts of buildings may be in buildings that pre-date the commencement on 1 May 2011 of the access provisions in the BCA Volume One or they may be in buildings constructed after 1 May 2011.

- (2) An access provision that was not in force immediately before 1 May 2011 does not apply to building work carried out under a building permit in respect of which an application was made before 1 May 2011, whether the permit was issued before or after 1 May 2011.

- (3) Despite anything to the contrary in the BCA Volume One, an access provision does not apply to—
- (a) a new part of an existing Class 1b building if the Class 1b building—
 - (i) has less than 4 bedrooms that are used for rental accommodation; and
 - (ii) was constructed before 1 May 2011, or in respect of which an application for a building permit for construction was made before 1 May 2011; or
 - (b) a new part of an existing Class 2 building if the Class 2 building was constructed before 1 May 2011, or in respect of which an application for a building permit for construction was made before 1 May 2011; or
 - (c) the internal parts of a sole-occupancy unit in a Class 2 building; or
 - (d) a Class 4 building; or
 - (e) a Class 10 building or a new part of a Class 10 building that is associated with—
 - (i) a Class 1a building; or
 - (ii) a Class 4 part of a building.
- (4) Despite anything to the contrary in the BCA Volume One and subject to regulation 234—
- (a) an access provision does not apply to an affected part of an existing building if—
 - (i) parts of the existing building are leased to different persons; and

- (ii) one of the persons is responsible for building work to be carried out in respect of the new part of the building; and
 - (iii) the new part of the building is leased to that person; and
- (b) the deemed-to-satisfy provision in Table E3.6b in the BCA Volume One requiring a passenger lift, which travels more than 12 metres, to have a lift floor dimension of not less than 1400 mm x 1600 mm does not apply if the passenger lift—
 - (i) is an existing passenger lift; and
 - (ii) is located in a new part or an affected part of an existing building; and
 - (iii) has a lift floor dimension of not less than 1100 mm x 1400 mm; and
- (c) the deemed-to-satisfy provisions in F2.4(c) and F2.4(e) in the BCA Volume One do not apply to an existing accessible sanitary compartment or an existing sanitary compartment suitable for a person with a disability to the extent that the requirements require a sanitary compartment to comply with AS 1428.1—2009 Design for access and mobility Part 1: General requirements for access—New building work published on 27 November 2009, as incorporated by the BCA Volume One, if the existing sanitary compartment—
 - (i) is located in a new part or an affected part of an existing building; and

- (ii) complies with AS 1428.1—2001
Design for access and mobility Part 1:
General requirements for access—
New building work published on
5 June 2001.

(5) In this regulation—

access provision means—

- (a) a performance requirement—
 - (i) that is contained in Section D,
Part E3 or Part F2 of the BCA
Volume One; and
 - (ii) in respect of which there is
an equivalent performance
requirement contained in the
Access Code within the meaning
of the Disability (Access to
Premises—Buildings) Standards
2010 of the Commonwealth; and

Note

The Disability (Access to Premises—
Buildings) Standards 2010 of the
Commonwealth is available from
the Australian Government Federal
Register of Legislation website at
www.legislation.gov.au.

- (iii) to the extent that the performance
requirement relates to the
provision of access to buildings,
and facilities and services within
buildings, for persons with
disabilities; and
- (b) a provision of a document applied,
adopted or incorporated by reference in
a performance requirement referred to
in paragraph (a);

affected part in relation to an existing building that is to contain a new part means—

- (a) the principal pedestrian entrance of the building; and
- (b) any part of the building that is necessary to provide a continuous accessible path of travel from the principal pedestrian entrance to the proposed new part;

new part in relation to an existing building means a part of that building that is to be altered, including an extension to the building, in respect of which an application for a building permit is made on or after 1 May 2011.

Note

Under section 160B of the Act, a person may apply on the ground of unjustifiable hardship to the Building Appeals Board for a determination that an access provision does not apply, or applies with specified modifications or variations, to a building or land.

Division 4—General

237 Small live music venue classification

- (1) The BCA Volume One applies as if, in clause A1.1, for paragraph (c)(iii) of the definition of **Assembly building**, there were substituted—

"(iii) a sports stadium, sporting or other club—
but not including a *small live music venue*; or".

- (2) The BCA Volume One applies as if, in clause A1.1, after the definition of **Sitework**, there were inserted—

"**Small live music venue** means the whole or the only part of a Class 6 building that has a rise in storeys of no more than 2—

- (a) in which live music entertainment is provided to the public; and
 - (b) that has a floor area not greater than 500 m²."
- (3) The BCA Volume One applies as if, at the foot of the definition of **Class 6** in clause A3.2, there were inserted—

"Note

A Class 6 building or part of a Class 6 building in which people assemble for entertainment purposes remains a Class 6 building or part of a Class 6 building if it is a *small live music venue*—see the definition of **Assembly building** in the BCA Volume One."

Part 17—Building product accreditation

Division 1—Definitions

238 Definitions

In this Part—

building product includes construction method, design, component or system connected with building work;

Committee means the Building Regulations Advisory Committee.

Division 2—Accreditation persons and bodies

239 Prescribed persons and bodies to accredit building products

For the purposes of sections 14 and 15 of the Act, the following persons and bodies are prescribed as accreditation persons or bodies—

- (a) the Australian Building Codes Board;
- (b) a person or body authorised by the Australian Building Codes Board.

240 Definition of Certificate of Accreditation in the BCA

- (1) The BCA Volume One applies as if, in clause A1.1, in the definition of **Certificate of Accreditation**, for "a State or Territory accreditation authority" there were substituted "the Building Regulations Advisory Committee".
- (2) The BCA Volume Two applies as if, in clause 1.1.1, in the definition of **Certificate of Accreditation**, for "a State or Territory accreditation authority" there were substituted "the Building Regulations Advisory Committee".

Division 3—Accreditation by Committee

241 Application of Division

This Division does not apply to a building product that complies with the relevant deemed-to-satisfy provisions of the BCA.

242 Application for accreditation

- (1) A person may apply to the Committee to have a building product accredited under this Division.
- (2) An application for accreditation must be in the form of Form 19.
- (3) An application must be accompanied by—
 - (a) the fee prescribed in regulation 244(1); and
 - (b) if required by the Committee, any one or more of the following—
 - (i) an appraisal of the building product from an organisation or person that is recognised by the Committee as competent to make the appraisal, including details of the appraiser's qualifications and experience;
 - (ii) an appraisal of the building product from an organisation or person nominated by the Committee addressing any matter relating to the properties and performance of a building product requested by the Committee;
 - (iii) a report from an Accredited Testing Laboratory or a Registered Testing Authority showing that the building product has been submitted to the tests listed in the report and setting out the results of those tests and any other relevant information that demonstrates

the suitability of the building product for its proposed purpose;

(iv) any installation manual produced for the building product;

(v) any other information or document required by the Committee.

243 Information in application to remain confidential

(1) A person must not disclose, except to the extent necessary to carry out functions or exercise powers under this Part, any information obtained by that person from an application for accreditation unless the disclosure is authorised in writing by the person who made the application.

Penalty: 10 penalty units.

(2) A person does not commit an offence under subregulation (1) by disclosing information—

(a) that is contained in the register under regulation 251 at the time of disclosure; or

(b) that has been published in the Government Gazette under regulation 245 or 248 before the disclosure.

244 Accreditation fees

(1) The fee for accreditation of a building product under this Division is 138·31 fee units.

(2) All fees paid under this Division must be paid into the Building account of the Victorian Building Authority Fund.

245 Certificate of accreditation

(1) If the Committee accredits a building product under this Division, the Authority must issue a certificate of accreditation to the applicant.

- (2) A certificate of accreditation must set out the following—
- (a) the name of the building product;
 - (b) a description of the building product;
 - (c) a description of the purpose and use of the building product;
 - (d) any regulation in relation to which the building product is accredited;
 - (e) any condition to which the accreditation is subject;
 - (f) the name and address of the holder of the accreditation;
 - (g) the number of the certificate of accreditation;
 - (h) the date of issue of the certificate of accreditation;
 - (i) any other information that the Committee considers appropriate.
- (3) The Authority must cause to be published in the Government Gazette notice of any accreditation of a building product under this Division as soon as practicable after that accreditation.
- (4) The notice of accreditation must contain the information set out in subregulation 245(2).

246 Revocation of accreditation

- (1) The Committee may at any time revoke an accreditation under this Division if it finds that—
- (a) the accreditation has been obtained by fraud, misrepresentation or concealment of facts; or
 - (b) the performance of the building product the subject of the accreditation—
 - (i) is unsatisfactory; or

- (ii) differs or fails to achieve the level of performance for which the building product was accredited; or
 - (c) the regulation in relation to which the building product was accredited has been amended or revoked.
- (2) If the Committee determines to revoke an accreditation, the Authority must notify the holder of the certificate of accreditation in writing of the decision of the Committee.

247 Holder may request revocation of accreditation

- (1) The holder of a certificate of accreditation may, in writing, at any time request the Committee to revoke the accreditation.
- (2) The Committee must revoke an accreditation under this Division on receipt of a request made under subregulation (1).

248 Notice of revocation of accreditation

- (1) The Authority must cause to be published in the Government Gazette notice of any revocation of an accreditation under this Division as soon as practicable after that revocation.
- (2) A notice that an accreditation has been revoked must include the following—
 - (a) the name of the building product;
 - (b) a description of the building product;
 - (c) the number of the certificate of accreditation;
 - (d) a statement to the effect that the accreditation of the building product has been revoked by the Committee;
 - (e) the date of the revocation;
 - (f) any other information the Committee considers appropriate.

249 Accreditation ceases to have effect on revocation

An accreditation under this Division ceases to have effect on its revocation.

250 Offence to falsely claim product accredited

A person or body must not knowingly claim that a building product is accredited under this Division if the building product is not accredited under this Division.

Penalty: 20 penalty units.

Division 4—Register and records

251 Register of accredited products

- (1) The Authority must keep a register of all building products accredited under Division 3.
- (2) The register must contain the following information in relation to each accredited building product or formerly accredited building product—
 - (a) the name of the building product;
 - (b) a description of the building product;
 - (c) a description of the purpose and use of the building product;
 - (d) any regulation in relation to which the building product is accredited;
 - (e) any condition to which the accreditation is subject;
 - (f) the name and address of the holder of the accreditation;
 - (g) the number of the certificate of accreditation;
 - (h) the date of issue of the certificate of accreditation;
 - (i) the date of revocation of the accreditation under Division 3 (if applicable);

- (j) any other information that the Committee considers appropriate.
- (3) The Authority must update the register as soon as is practicable after the Committee revokes an accreditation under Division 3.
- (4) The Authority must make the register available without charge for inspection by any person during normal office hours.
- (5) The Authority may publish the information on the register on the Authority's website.

252 Records

The Authority must keep—

- (a) all documents considered by the Committee in relation to an accreditation under Division 3 until the accreditation is revoked; and
- (b) copies of all certificates of accreditation issued by the Authority.

Part 18—Building practitioners

Division 1—Registration

253 Applications for registration

- (1) An application for registration under section 169 of the Act must be in a form approved by the Authority.
- (2) For the purposes of subregulation (1), the Authority may approve a form for each category and class of building practitioner.

254 Information to accompany application for registration

For the purposes of section 169(2)(c) of the Act, an application for registration under section 169 of the Act must be accompanied by the following information—

- (a) any evidence or proof of identity of the applicant that is required by the Authority;
- (b) any information about the applicant's work or employment history and experience in the building industry, including any technical referee report, that is required by the Authority;
- (c) a certified copy of each licence or registration to carry out building work outside of Victoria (if any);
- (d) a certified copy of any academic qualifications for the purposes of section 170(1)(b) of the Act;
- (e) a certified copy of any other document being relied on in support of the application.

255 Prescribed information as to character of applicant for registration

For the purposes of section 169(2)(ca) of the Act, the prescribed information relating to character to be provided with an application for registration as a building practitioner is whether—

- (a) the applicant has, within the last 10 years as an adult or the last 5 years as a child, been convicted or found guilty of an indictable offence or an offence that, if committed in Victoria, would be an indictable offence involving fraud, dishonesty, drug trafficking or violence; or
- (b) the applicant has ever been insolvent under administration; or
- (c) any licence, permit, registration or other authority enabling the applicant to work as a building practitioner in Victoria or in an equivalent occupation in the building and construction industry in another State or a Territory has ever been cancelled or suspended; or
- (d) the applicant has ever been disqualified from holding or been refused a licence, permit, registration or other authority enabling the applicant to work as a building practitioner in Victoria or in an equivalent occupation in the building and construction industry in another State or a Territory; or
- (e) the applicant has been fined, reprimanded or cautioned for any breach of an Act, regulations, rules, professional conduct or code of ethics, in relation to working as a building practitioner in Victoria or in an equivalent occupation in the building and

construction industry in another State or a Territory; or

- (f) any insurer has ever declined, cancelled, or imposed special conditions in relation to the provision of professional indemnity insurance, public liability insurance or any other indemnity insurance in relation to the applicant working as a building practitioner in Victoria or in an equivalent occupation in the building and construction industry in another State or a Territory.

256 Condition of registration

For the purposes of section 170A(a) of the Act, it is a prescribed condition of registration that a building practitioner must not allow another person to use the building practitioner's certificate issued to the building practitioner under section 172 of the Act.

Division 2—Prescribed qualifications and classes of building practitioner

257 Prescribed classes of building practitioner

For the purposes of section 170 of the Act, each class of building practitioner in respect of a category of building practitioner is the class set out in Part 2 of Schedule 9.

258 Prescribed qualifications

- (1) For the purposes of section 170(1)(b)(i) of the Act, the prescribed qualifications for registration of a category or a class of building practitioner are any—

- (a) degree, diploma, certificate, accreditation, authority, training or examination set out in Part 3 of Schedule 9 for the category or class of building practitioner; and
 - (b) practical experience set out in Part 3 of Schedule 9 for that category or class of building practitioner.
- (2) In this regulation *practical experience*—
- (a) includes compliance with any supervision requirements during the obtaining of that experience; and
 - (b) must have been obtained in the 7 years before the application for registration was made.

259 Building surveyor work

- (1) A person who is registered in the class of building surveyor (unlimited) is authorised to carry out the work set out in column 3 of item 1 of the Table in Schedule 10.
- (2) A person who is registered in the class of building surveyor (limited) is authorised to carry out the work set out in column 3 of item 2 of the Table in Schedule 10.

260 Building inspector work

- (1) A person who is registered in the class of building inspector (unlimited) is authorised to carry out the work set out in column 3 of item 1 of the Table in Schedule 11.
- (2) A person who is registered in the class of building inspector (limited) is authorised to carry out the work set out in column 3 of item 2 of the Table in Schedule 11.

261 Domestic builder work

A person who is registered in a class of domestic builder set out in column 2 of the Table in Schedule 12 is authorised to carry out the domestic building work set out in column 3 of that Table corresponding to that class of domestic builder.

Division 3—Renewal of registration

262 Application for renewal of registration

- (1) An application for renewal of registration under section 172AA(1) of the Act must be in a form approved by the Authority.
- (2) For the purposes of subregulation (1), the Authority may approve a form for each category and class of building practitioner.

263 Renewal criteria for application for renewal of registration

For the purposes of section 172AA(4)(b) of the Act, the renewal criteria for an application for renewal of registration is to provide any evidence or proof of identity of the applicant that is required by the Authority.

Division 4—General

264 Notice of suspension or cancellation of registration

For the purposes of section 183A of the Act—

- (a) a notice of suspension of registration must be in the form of Form 20; and
- (b) a notice of cancellation of registration must be in the form of Form 21.

265 Professional standards

A registered building practitioner must—

- (a) perform work as a building practitioner in a competent manner and to a professional standard; and
- (b) immediately inform a client in writing if a conflict of interest arises or appears likely to arise between the building practitioner and that client; and
- (c) receive remuneration for services as a building practitioner solely by the professional fee or other benefits specified in the contract of engagement or by the salary and other benefits payable by the building practitioner's employer.

266 Duplicate certificate fee

For the purposes of section 172(7) of the Act, the prescribed fee for a duplicate building practitioner's certificate is 2.75 fee units.

267 Period for which private building surveyor may not act

The prescribed period for the purposes of section 79(1)(b) of the Act is one year.

Division 5—Exemptions for certain building practitioners

268 Builders of Class 10 buildings

- (1) A builder who is solely engaged in the business of constructing Class 10 buildings is exempt from section 176(1A)(c) of the Act in relation to that business, unless the business relates to—
 - (a) construction involving domestic building work carried out under a major domestic building contract; or

- (b) the construction of Class 10b structures constructed for the purposes of displaying a sign.
- (2) Despite section 24A(1)(a) and (3)(a)(i) of the Act, a relevant building surveyor is not required to be satisfied that a builder to which this regulation applies is registered under Part 11 of the Act to the extent that the person is engaged in the business described in subregulation (1).

269 Domestic builders if work less than \$10 000

- (1) A builder who is solely engaged in the business of carrying out domestic building work is exempt from section 176(1A)(c) of the Act in relation to that business if the cost of the domestic building work carried out by that person is \$10 000 or less in each case.
- (2) This regulation does not apply to a builder who, in relation to a home within the meaning of the **Domestic Building Contracts Act 1995**, is engaged in the business of—
 - (a) the re-blocking or re-stumping of a home; or
 - (b) the demolition or removal of a home.

270 Draftsperson doing certain work

A draftsperson is exempt from sections 176(1)(e) and 176(1A)(c) of the Act to the extent that the person is engaged in the business of preparing documentation relating to permits or permit applications or preparing plans or specifications—

- (a) in relation to domestic building work that is not carried out under a major domestic building contract; or
- (b) for a building practitioner registered in the category of engineer.

Part 19—Appeals and reviews

271 Appeal periods

- (1) For the purposes of section 146(1)(a) of the Act, the prescribed appeal period is—
 - (a) in the case of an appeal against the refusal of a permit, an amendment, an application or an approval—30 days after the day the applicant is notified of the refusal; or
 - (b) in the case of an appeal against the deemed refusal of a permit or an application—30 days after the day the permit or application is deemed under the Act to have been refused; or
 - (c) in the case of an appeal against the imposition of a condition on a permit or an approval—30 days after the day the permit is given or the approval is issued; or
 - (d) in the case of an appeal against the amendment of a permit or an approval—30 days after the day the owner of the building or land to which the permit relates is notified of the amendment; or
 - (e) in the case of an appeal against a requirement of a reporting authority or relevant building surveyor to give more information about a permit application or to amend a permit application—30 days after the day the applicant is notified of the requirement; or
 - (f) in the case of an appeal against a refusal by a person or body to make a determination or exercise a discretion under a condition of a permit—30 days after the day the applicant is notified of the refusal; or

- (g) in the case of an appeal against a decision to issue a permit that differs from, or fails to implement, a reporting authority's recommendations in a report on the application for the permit—30 days after the day the reporting authority receives notification of the issue of the permit from the relevant building surveyor; or
- (h) in the case of an appeal against a direction to fix building work under Division 2 of Part 4 of the Act—7 days after the day the person is given the written direction under section 37C(b) or 37D(2) of the Act; or
- (i) in a case of an appeal against the cancellation of an approval under section 71 of the Act—30 days after the day the owner of the building or land concerned is notified of the cancellation; or
- (j) in a case of an appeal against the refusal of the Authority to consent to the termination of a building surveyor's appointment under section 81(1) of the Act—30 days after the day the owner or the relevant building surveyor (as the case requires) is notified of the Authority's refusal; or
- (k) in the case of an appeal against the refusal of the Authority to consent to the proposed appointment of a private building surveyor or municipal building surveyor under section 81(4) of the Act—30 days after the day the owner or the private building surveyor or municipal building surveyor (as the case requires) is notified of the Authority's refusal; or

- (l) in the case of an appeal against a determination under section 87(1) of the Act as to the appropriateness of protection work—14 days after the day the owner and the adjoining owner is given notice of the determination; or
- (m) in the case of an appeal against a declaration made under section 89(1) of the Act—30 days after the day the owner or the adjoining owner (as the case requires) is given notice of the declaration; or
- (n) in the case of an appeal against a requirement made under section 87 of the Act to give more information—14 days after the day the owner is asked to give more information under section 87(2)(a) of the Act; or
- (o) in the case of an appeal against a decision to serve a building notice on an owner—30 days after the day the building notice is served on the owner; or
- (p) in the case of an appeal against the making of an emergency order or a building order—30 days after the day the order is served on the person to whom it is directed; or
- (q) in the case of an appeal against the imposition of a condition on an emergency order or a building order—30 days after the day the order is served on the person to whom it is directed; or
- (r) in the case of an appeal against a refusal to amend or cancel an emergency order or a building order—30 days after the day the owner is notified of the refusal or the day the relevant building surveyor is deemed to have refused to amend or cancel the order; or

- (s) in the case of an appeal against a requirement that an order made under the Act be fully complied with—30 days after the day the owner is notified of the requirement; or
 - (t) in the case of an appeal against a decision of the Authority under section 42 or 43 of the **Building and Construction Industry Security of Payment Act 2002**—30 days after the day the Authority makes the decision; or
 - (u) in the case of an appeal against a failure by a person or body to make a decision, a determination, an approval, a cancellation or an amendment or to exercise a discretion within a reasonable time—60 days after the request was made to the person or body to make the decision, determination, approval, cancellation or amendment or to exercise the discretion; or
 - (v) in the case of an appeal against any other decision, determination, declaration or approval or exercise of discretion by a person or body—30 days after the day notification is given of the decision, determination, declaration or approval or exercise of discretion; or
 - (w) in any other case—30 days after the day of the event in relation to which the appeal is brought.
- (2) If an appeal period prescribed under this regulation begins on the day on which a person is notified under the Act or these Regulations but the notice has not been so given, the prescribed appeal period for the purposes of section 146(1)(a) of the Act is—

- (a) 37 days after the day of the event that required that notification to be given; or
- (b) any longer period that the Building Appeals Board considers appropriate in the circumstances.

272 Appeal, referral and application fees

- (1) The fees for making an appeal, a referral or an application to the Building Appeals Board in a matter relating to a Class 1 or 10 building are—
 - (a) for an appeal under—
 - (i) section 138, 138A, 140, 141 or 142 of the Act—23·04 fee units; or
 - (ii) section 139, 144 or 144A of the Act—13·82 fee units; or
 - (b) for a referral under—
 - (i) section 150 of the Act—13·82 fee units; or
 - (ii) section 151, 152, 153, 154, 155, 156, 157 or 158 of the Act—23·04 fee units; or
 - (c) for an application under—
 - (i) section 159 of the Act—23·04 fee units; or
 - (ii) section 160 of the Act—8·29 fee units; or
 - (iii) section 164 of the Act—13·82 fee units.
- (2) The fees for making an appeal, a referral or an application to the Building Appeals Board in a matter relating to a building other than a Class 1 or 10 building are—

- (a) for an appeal under—
 - (i) section 138, 138A, 140, 141 or 142 of the Act—46.1 fee units; or
 - (ii) section 139, 144 or 144A of the Act—23.04 fee units; or
- (b) for a referral under—
 - (i) section 150 of the Act—23.04 fee units; or
 - (ii) section 151, 152, 153, 154, 155, 156, 157 or 158 of the Act—46.1 fee units; or
- (c) for an application under—
 - (i) section 159 of the Act—46.1 fee units; or
 - (ii) section 160 of the Act—18.43 fee units; or
 - (iii) section 164 of the Act—23.04 fee units.
- (3) The fees for making an application to the Building Appeals Board are—
 - (a) for an appeal under section 160A of the Act—18.43 fee units; or
 - (b) for an appeal under section 160B of the Act—41.89 fee units.

273 Fees for fast track appeals

- (1) The fee for making a request to the Building Appeals Board under section 147(1) of the Act is 36.88 fee units.
- (2) For the purposes of section 147(3)(b) of the Act, the additional prescribed fee is 14.75 fee units per hour or part of an hour.

274 Refund of fees by Authority

- (1) The Authority may refund, from the Building account of the Victorian Building Authority Fund, in whole or in part, any fee paid to the Building Appeals Board under this Part if the appeal, request, application or referral does not proceed.
- (2) The Building Appeals Board must refund from the Victorian Building Authority Fund any fee paid for a request under regulation 273(1) if the request is refused.

275 Review period

The period within which an application for review by VCAT under section 25J of the Act must be lodged is—

- (a) 60 days after the day that the applicant is notified of the decision to be reviewed; or
- (b) if the application is for the review of a failure to make a decision within a reasonable time—67 days after the day a request was made to the Authority to make that decision.

Part 20—Infringement notices

276 Authorised officers

The prescribed office or class of officers for the purposes of the definition of *authorised officer* in section 254 of the Act are—

- (a) the Chief Executive Officer or a VBA inspector, for offences against regulations 41(1), 197(2), 199(2), 216(2), 218(3), 223(1), 223(2), 225, 226(1), 227 and 228; and
- (b) the chief officer, for offences against regulations 199(2), 216(2), 223(1), 223(2), 225, 226(1), 227 and 228; and
- (c) the municipal building surveyor, for offences against regulations 41(1), 137, 197(2), 199(2), 216(2), 218(3), 223(1), 223(2), 225, 226(1), 227 and 228.

277 Prescribed offences

The prescribed offences for the purposes of the definition of *prescribed offence* in section 254 of the Act are offences against regulations 41(1), 137, 197(2), 199(2), 216(2), 218(3), 223(1), 223(2), 225, 226(1), 227 and 228.

278 Prescribed penalties

The prescribed penalty for the purposes of section 255(3) of the Act is—

- (a) 5 penalty units in the case of a place of public entertainment; and
- (b) 2 penalty units in any other case.

Part 21—Exemptions

279 Exemptions from building regulations

A building or building work specified in column 2 of the Table in Schedule 3 is exempt from the regulations specified in column 3 of that Table corresponding to that building or building work.

280 Exemption for Class 10 buildings on farm land

- (1) The relevant council may exempt a Class 10 building that is to be constructed on farm land and used for farming purposes from all or any of the requirements of these Regulations.
- (2) If the relevant council grants an exemption from all of these Regulations under subregulation (1), a building permit and certificate of final inspection under the Act are not required for that building.

281 Exemptions relating to building surveyors for certain buildings

Sections 23, 30, 47 and 73 of the Act do not apply to a relevant building surveyor in relation to the following classes of buildings—

- (a) premises that are used or intended to be used for the provision of residential accommodation by—
 - (i) a community service established under section 44 of the **Children, Youth and Families Act 2005**; or
 - (ii) a registered community service within the meaning of that Act that is situated on Crown land or land in relation to which the Secretary to the Department of Health and Human Services or the Director of Housing is registered as proprietor;

- (b) premises that are used or intended to be used as—
 - (i) a remand centre within the meaning of the **Children, Youth and Families Act 2005**; or
 - (ii) a secure welfare service within the meaning of that Act; or
 - (iii) a youth justice centre within the meaning of that Act;
 - (iv) a youth residential centre within the meaning of that Act; or
- (c) premises that are used or intended to be used as—
 - (i) a prison established under section 10 of the **Corrections Act 1986**; or
 - (ii) a community corrections centre established under Part 9 of that Act;
- (d) premises that are used or intended to be used as a residential institution within the meaning of the **Disability Act 2006**;
- (e) premises that are used or intended to be used as a residential service within the meaning of the **Disability Act 2006**;
- (f) premises that are used or intended to be used as a courthouse by a court;
- (g) premises that are used or intended to be used as a police station;
- (h) premises that are used or intended to be used as a designated mental health service within the meaning of the **Mental Health Act 2014**;

- (i) premises that are used or intended to be used as a youth refuge or a women's refuge operated with funding provided by the Secretary to the Department of Health and Human Services for the purpose of providing a refuge.

282 Exemption from section 25B(1A) of the Act for owner-builders

- (1) An owner of land or a building is exempt from section 25B(1A) of the Act if the owner enters into a major domestic building contract to carry out domestic building work with a corporation and takes reasonable steps to ensure that—
 - (a) at least one of the directors of the corporation is registered under Part 11 of the Act as a domestic builder; and
 - (b) the registration authorises the director to carry out that work.
- (2) This regulation is **revoked** on 1 July 2018.

Part 22—Transitional and savings provisions

283 Registration of building practitioners not affected by revocation of Building Interim Regulations 2017

The revocation of the Building Interim Regulations 2017 does not affect the registration under Part 11 of the Act of any building practitioner who was registered or taken to be registered under that Part immediately before that revocation.

284 Domestic builder (manager)

- (1) Despite the revocation of the Building Interim Regulations 2017, a person registered under Part 11 of the Act in the category of builder, class of domestic builder (manager) immediately before 1 July 2017 and to whom regulation 2046(2) of the Building Interim Regulations 2017 as in force immediately before its revocation applied, continues to be registered under Part 11 of the Act in that class of domestic builder until 30 June 2022.
- (2) For the purposes of subregulation (1), the relevant qualifications set out in the table in Schedule 7 of the Building Interim Regulations 2017, as in force before being substituted by regulation 15 of the Building Amendment Regulations 2017, are taken to be the prescribed qualifications for the category of builder, class of domestic builder (manager), until 30 June 2022.

285 Appointment of private building surveyor

Section 78(1A) of the Act does not apply in relation to domestic building work—

- (a) to be carried out under a major domestic building contract entered into by a builder before 1 September 2016; or

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Part 22—Transitional and savings provisions

- (b) in respect of which a builder acts or proposes to act as a domestic builder before 1 September 2016.

Part 23—Revocation of temporary fees

286 Revocation of regulations prescribing fees

The following regulations are **revoked** on
1 July 2020—

- (a) regulation 18;
- (b) regulation 36;
- (c) regulation 45;
- (d) regulation 52;
- (e) regulation 244;
- (f) regulation 266;
- (g) regulation 272;
- (h) regulation 273.

Schedule 1—Revocations

Regulation 4

Table

<i>S.R. No.</i>	<i>Title</i>
31/2017	Building Interim Regulations 2017
65/2017	Building Amendment Regulations 2017
81/2017	Building Further Amendment Regulations 2017
87/2017	Building Amendment (Macedon Ranges Siting Requirements and Other Matters) Regulations 2017
136/2017	Building Amendment (Powers of Entry and Other Matters) Regulations 2017
26/2018	Building Amendment (National Construction Code Amendment and Siting Requirements) Regulations 2018

Schedule 2—Duties and responsibilities of an owner-builder

Regulation 19

- 1 Understanding the restrictions imposed by the Act and these Regulations on the carrying out of domestic building work, including those referred to in section 16 of the Act, which include that building work must be carried out under a building permit.
- 2 Understanding the process of applying to the municipal building surveyor, or appointing a private building surveyor under Part 6 of the Act, to obtain a building permit and understanding the circumstances under which the relevant building surveyor must not issue a building permit.
- 3 Ensuring building work is inspected as required by the Act and these Regulations.
- 4 Understanding the requirement for, and knowing when to apply for and obtain, an occupancy permit or certificate of final inspection.
- 5 Understanding the requirement for entering a major domestic building contract when engaging a domestic builder to undertake certain building work.
- 6 Understanding the requirement to engage a building practitioner registered under Part 11 of the Act to carry out certain building work if required by the Act and these Regulations.
- 7 Understanding the requirement to engage licensed or registered practitioners, other than building practitioners registered under Part 11 of the Act, to undertake forms of regulated work, such as plumbing or electrical work.
- 8 Understanding the processes available to resolve domestic building work disputes under the **Domestic Building Contracts Act 1995**.
- 9 Undertaking relevant planning and preparation for carrying out building work.

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Schedule 2—Duties and responsibilities of an owner-builder

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- | | |
|----|---|
| 10 | Complying with site safety requirements, including development, communication, monitoring and maintenance of site safety plans, and any relevant requirement under the Occupational Health and Safety Act 2004 and the regulations under that Act, for carrying out building work. |
| 11 | Supervising the carrying out of all building work and ensuring that it complies with the Act and these Regulations. |
| 12 | Ensuring building work is undertaken in accordance with the requirements of any relevant environmental laws. |
| 13 | Understanding when directions to fix building work can be made and when and how enforcement of safety and building standards can be undertaken in relation to domestic building work subject to a certificate of consent. |
| 14 | Arranging any required protection works. |
| 15 | Interpreting plans, drawings and specifications relating to the building work. |
| 16 | Setting out and preparing the building site according to plans and specifications. |
| 17 | Understanding requirements for the sale of an owner-built home under section 137B of the Act, including the requirement to obtain insurance for the building work carried out by the owner-builder. |
| 18 | Ensuring knowledge of and obtaining insurance to cover any loss, damage or injury to the owner-builder or others incurred in connection with the carrying out of the building work. |
| 19 | Ensuring knowledge of warranties implied into a contract for the sale of an owner-built home under section 137C of the Act. |
| 20 | Any other duty or responsibility of an owner-builder imposed by the Act, these Regulations, the Domestic Building Contracts Act 1995 or the regulations made under that Act. |

Schedule 3—Exemptions for building work and buildings

Regulations 23, 185, 279

Table

<i>Column 1</i>	<i>Column 2</i>	<i>Column 3</i>
<i>Item</i>	<i>Description of building or building work exempted from building permit and occupancy permit</i>	<i>Building regulations that building or building work exempted from</i>
1	Construction of a freestanding Class 10a building that— (a) has a floor area not exceeding 10 m²; and (b) is no more than 3 m in height or, if situated within 1 m of a boundary, is no more than 2.4 m in height; and (c) if appurtenant to a building of another Class on the same allotment, is located no further forward on the allotment than the front wall of the building to which it is appurtenant; and (d) if it is not appurtenant to a building of another Class on the same allotment, is the only Class 10a building on the allotment and is set back at least 9 m from the front street alignment and at least 2 m from each side street alignment; and (e) is not constructed of masonry.	All Parts

Note

The consent of a service authority may be required to construct a Class 10a building 10 m² or less in an area over an easement vested in that authority under another Act or within 1 m laterally of any works of a water supply authority.

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Schedule 3—Exemptions for building work and buildings

<i>Column 1</i>	<i>Column 2</i>	<i>Column 3</i>
<i>Item</i>	<i>Description of building or building work exempted from building permit and occupancy permit</i>	<i>Building regulations that building or building work exempted from</i>
2	Demolition of a freestanding Class 10 building that— (a) is not constructed of masonry; and (b) does not exceed 40 m² in floor area; and (c) will not adversely affect the safety of the public or occupiers of the building; and (d) is not work carried out on, or in connection with, a building included on the Heritage Register within the meaning of the Heritage Act 2017. Note This building work may require approval from the Executive Director within the meaning of the Heritage Act 2017 under that Act. Certain building work that does not require a building permit may require a planning permit under the Planning and Environment Act 1987.	All Parts
3	Repair, renewal or maintenance of a part of an existing building, if the building work— (a) will not adversely affect the structural soundness of the building, and does not include— (i) an increase or decrease in the floor area or height of the building; (ii) underpinning or replacement of footings; or	All Parts

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Schedule 3—Exemptions for building work and buildings

<i>Column 1</i>	<i>Column 2</i>	<i>Column 3</i>
<i>Item</i>	<i>Description of building or building work exempted from building permit and occupancy permit</i>	<i>Building regulations that building or building work exempted from</i>
	(iii) the removal or alteration of any element of the building that is contributing to the support of any other element of the building; and (b) is done using materials commonly used for the same purpose as the material being replaced; and (c) will not adversely affect the safety of the public or occupiers of the building; and (d) will not adversely affect an essential safety measure relating to the building. Note Certain building work that does not require a building permit may require a planning permit under the Planning and Environment Act 1987 or may be in a heritage overlay and be required to be maintained using particular materials. If the contract price for the carrying out of domestic building work is more than \$5000 (or any higher amount fixed by the regulations made under the Domestic Building Contracts Act 1995), the builder is required to enter into a major domestic building contract with the owner under the Domestic Building Contracts Act 1995.	
4	Alterations to a building, if the building work— (a) will not adversely affect the structural soundness of the building, and does not include— (i) an increase or decrease in the floor area or height of the building; or	Parts 2 to 19

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Schedule 3—Exemptions for building work and buildings

<i>Column 1</i>	<i>Column 2</i>	<i>Column 3</i>
<i>Item</i>	<i>Description of building or building work exempted from building permit and occupancy permit</i>	<i>Building regulations that building or building work exempted from</i>
	(ii) underpinning or replacement of footings; or (iii) the removal or alteration of any element of the building that is contributing to the support of any other element of the building; and (b) will not project beyond the street alignment; and (c) will not adversely affect the safety of the public or occupiers of the building; and (d) is not work carried out on, or in connection with, a building included on the Heritage Register within the meaning of the Heritage Act 2017; and (e) is not work in relation to, and will not adversely affect, an essential safety measure relating to the building.	

Note

Certain building work that does not require a building permit may require a planning permit under the **Planning and Environment Act 1987** or may be in a heritage overlay and be required to be maintained using particular materials.

If the contract price for the carrying out of domestic building work is more than \$5000 (or any higher amount fixed by the regulations made under the **Domestic Building Contracts Act 1995**), the builder is required to enter into a major domestic building contract with the owner under the **Domestic Building Contracts Act 1995**.

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Schedule 3—Exemptions for building work and buildings

<i>Column 1</i>	<i>Column 2</i>	<i>Column 3</i>
<i>Item</i>	<i>Description of building or building work exempted from building permit and occupancy permit</i>	<i>Building regulations that building or building work exempted from</i>
5	Any building that is not of a Class listed in clause A3.2 of the BCA Volume One and clause 1.3.2 of the BCA Volume Two.	All Parts
6	A building used only temporarily for the duration of building work for— (a) construction purposes; or (b) display purposes.	All Parts
7	Temporary structures other than those to which regulation 207 applies.	All Parts
8	A swimming pool or spa with a depth not exceeding 300 mm.	All Parts
9	A relocatable swimming pool or spa that is erected temporarily in an area enclosed by an approved barrier. Note This exemption applies only to the relocatable swimming pool or spa and not to the barrier.	All Parts
10	A fence (other than a fence forming part of a safety barrier for a swimming pool or spa or a fence forming part of an outdoor play space associated with a children's service)— (a) not exceeding 2 m in height; and (b) not exceeding 1.5 m in height when within 3 m of a street (which is not a lane, footway, alley or right of way) alignment and which is not constructed of masonry, concrete or similar material; and	All Parts except reg. 89(1) and Schedule 6

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Building Regulations 2018

S.R. No. 38/2018

Schedule 3—Exemptions for building work and buildings

<i>Column 1</i>	<i>Column 2</i>	<i>Column 3</i>
<i>Item</i>	<i>Description of building or building work exempted from building permit and occupancy permit</i>	<i>Building regulations that building or building work exempted from</i>
	(c) not exceeding 1.2 m in height when within 3 m of a street (which is not a lane, footway, alley or right of way) alignment and which is constructed of masonry, concrete or similar material; and (d) not exceeding 1 m in height above the footpath when within 9 m of a point of intersection of street alignments.	
11	A chain wire fence surrounding a tennis court.	All Parts
12	A Class 10b structure constructed for the purpose of displaying a sign if that structure is— (a) less than 3 m from a street alignment and does not exceed 1 m in height above ground level; or (b) not less than 3 m from a street alignment and does not exceed— (i) a height of 8 m above ground level; and (ii) 6 m² in display area.	All Parts
13	Any mast, pole, antenna, aerial or similar Class 10b structure— (a) attached to a building and which does not exceed a height of 3 m above the highest point of the attachment to the building; or (b) not attached to a building and which does not exceed a height of 8 m above ground level.	All Parts

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Building Regulations 2018
S.R. No. 38/2018

Schedule 3—Exemptions for building work and buildings

<i>Column 1</i>	<i>Column 2</i>	<i>Column 3</i>
<i>Item</i>	<i>Description of building or building work exempted from building permit and occupancy permit</i>	<i>Building regulations that building or building work exempted from</i>
14	Any facility (within the meaning of paragraph (b) of the definition of facility in section 7 of the Telecommunications Act 1997 of the Commonwealth) and construction or demolition of such a facility by a carrier (within the meaning of that section).	Parts 2 to 19
15	Any retaining wall less than 1 m in height that is not associated with other building work or with protection of adjoining property.	Parts 2 to 19 except regulation 119
16	A pergola that— (a) is not more than 3·6 m in height; and (b) in the case of a pergola that is appurtenant to a Class 1 building, is located no further forward on the allotment than 2·5 m forward of the front wall of that building; and (c) in any other case, is located no further forward on the allotment than the front wall of that building to which it is appurtenant; and (d) has a floor area not exceeding 20 m ² .	Parts 2 to 19
17	Installation of a wood or solid fuel household heating appliance. Note Installation of a wood or solid fuel burning heater is plumbing work and must be carried out by a licensed plumber.	Parts 2 to 19

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Schedule 3—Exemptions for building work and buildings

<i>Column 1</i>	<i>Column 2</i>	<i>Column 3</i>
<i>Item</i>	<i>Description of building or building work exempted from building permit and occupancy permit</i>	<i>Building regulations that building or building work exempted from</i>
18	A relocatable building that is a movable unit within the meaning of the Housing Act 1983 that is constructed for a community service and is to be used or intended to be used to provide temporary accommodation on a non-profit basis if— (a) the building has a floor area not exceeding 30 m²; and (b) the building is located no further forward on the allotment than the front wall of the building to which it is appurtenant; and (c) the building or building work will not adversely affect the structural soundness of that, or any other building; and (d) the building or building work will not adversely affect the safety of the public or the occupiers of the building; and (e) the building is set back from an allotment boundary not less than 1 m; and (f) the building does not exceed a height of 3.6 m; and (g) the building work will not involve construction over an easement vested in a service authority from whom a report and consent is required under regulation 130.	Parts 2 to 19
19	A relocatable building used as a school or TAFE institute within the meaning of the Education and Training Reform Act 2006 if— (a) the building has a floor area not exceeding 300 m²; and	Parts 2 to 19

Authorised by the Chief Parliamentary Counsel

Building Regulations 2018
S.R. No. 38/2018

Schedule 3—Exemptions for building work and buildings

<i>Column 1</i>	<i>Column 2</i>	<i>Column 3</i>
<i>Item</i>	<i>Description of building or building work exempted from building permit and occupancy permit</i>	<i>Building regulations that building or building work exempted from</i>
	(b) the building or building work will not adversely affect the structural soundness of that, or any other building; and	
	(c) the building or building work will not adversely affect the safety of the public or the occupiers of the building.	

Schedule 4—Forms

FORM 1

Regulation 24

Building Act 1993

Building Regulations 2018

APPLICATION FOR A BUILDING PERMIT

To (Building surveyor)

From

*Owner/*Agent of owner

*ACN/*ARBN

Postal address of applicant

Postcode

Email

Address for serving or giving of documents

Postcode

Indicate if the applicant is a lessee or licensee of
Crown land to which this application applies

☐†

Contact person

Telephone

Lessee responsible for building work

Indicate if a lessee of the building, of which parts
are leased by different persons, is responsible for
the alterations to a part of the building leased by
that lessee

☐†

* **Ownership details** (if applicant is agent of owner)

Name of owner(s) [*insert full name(s)*]

*ACN/*ARBN

Postal address

Postcode

Contact person

Telephone

Email

Building Regulations 2018

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Property details

Number	Street/road	City/suburb/town	Postcode
Lot/s	LP/PS	Volume	Folio
Crown allotment	Section	Parish	County
Municipal district	Allotment area (for new dwellings only) m ²		
Land owned by the Crown or a public authority			☐ [†]

Builder (if known)

Name	Telephone
Postal address	Postcode

Building practitioners and/or architect

(a) to be engaged in the building work

Name	Category/class	Registration no.
Name	Category/class	Registration no.

If a registered domestic builder carrying out domestic building work, attach details of the required insurance.

(b) who were engaged to prepare documents forming part of the application for this permit

Name	Category/class	Registration no.
Name	Category/class	Registration no.

Nature of building work

Construction of a new building	☐ [†]	Alterations to an existing building	☐ [†]
Demolition of a building	☐ [†]	Removal of a building	☐ [†]
Extension to an existing building	☐ [†]	Change of use of an existing building	☐ [†]
Re-erection of a building	☐ [†]	Construction of swimming pool or spa barrier	☐ [†]
Construction of swimming pool or spa	☐ [†]		
Other [give description]	☐ [†]		

Proposed use of building

***Owner-builder**

I intend to carry out the work as an owner-builder. [Yes/No]

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Cost of building work

Is there a contract for the building work? [Yes/No]

If yes, state the contract price \$

If no, state the estimated cost of the building work
(including the cost of labour and materials) and
attach details of the method of estimation \$

Stage of building work

If application is to permit a stage of the work—

Extent of stage

Cost of work for this stage \$

Signature

Signature of applicant

Date

* *Delete if inapplicable*

† *Tick if applicable*

Building Regulations 2018
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FORM 2

Regulation 37(1)

Building Act 1993
Building Regulations 2018
BUILDING PERMIT

Issued to

*Owner/*Agent of owner

*ACN/*ARBN

Postal address

Postcode

Email

Address for serving or giving of documents

Postcode

Contact person

Telephone

***Ownership details** (if person issued with permit is not the owner)

Owner

*ACN/*ARBN

Postal address

Postcode

Email

Contact person

Telephone

Property details [*include title details as and if applicable*]

Number	Street/road	City/suburb/town	Postcode
Lot/s	LP/PS	Volume	Folio
Crown allotment	Section	Parish	County
Municipal district			

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Builder

Name

Telephone

Address

Postcode

Details of building practitioners and architects

(a) to be engaged in the building work

Name Category/class Registration no.

Name Category/class Registration no.

[include building practitioners with continuing involvement in the building work]

(b) who were engaged to prepare documents forming part of the application for this permit

Name Category/class Registration no.

Name Category/class Registration no.

[include only building practitioners with no further involvement in the building work]

***Details of domestic building work insurance**

The issuer or provider of the required insurance policy is

[insert name of policy issuer or provider]

***Details of relevant planning permit**

Planning permit no.

Date of grant of planning permit

Nature of building work

Construction of a *new building/*extension/*alteration/*change of use/*demolition/*removal/*re-erection of a building

*Storeys contained

*Rise in storeys (for Class 2-9 building only)

*Effective height

*Type of construction

Version of BCA applicable to permit

Stage of building work permitted

Cost of building work \$

Total floor area of new building work in m²

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Building classification

Part of building

BCA Classification

Part of building

BCA Classification

***Performance solution**

A performance solution was used to determine compliance with the following performance requirements of the BCA that relate to the building to which this permit applies:

Relevant performance requirement	Details of performance solution
	<i>[Insert details of performance solution(s) including applicable materials, systems, methods of building, procedures, specifications and other relevant requirements]</i>

***Building Appeals Board determinations and orders**

The following determinations and orders of the Building Appeals Board (the **BAB**) relate to the building work to which this permit applies:

Date of determination or order	Determination or order	Section of the Building Act 1993 under which application to BAB made
	<i>[Insert details of determination or order including applicable materials, systems, methods of building, procedures, specifications and other relevant requirements]</i>	

***Prescribed reporting authorities**

The following bodies are prescribed reporting authorities for the purposes of the application for this permit in relation to the matters set out below:

Reporting authority	Matter reported on or consented to	Regulation no.

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***Combined allotment determination**

A determination has been made under regulation 64(1) in relation to the building work that is the subject of this permit.

***Subdivision of existing building**

This building permit authorises building work that involves the subdivision of an existing building.

An exemption has been issued under regulation 231 in relation to the building work that is the subject of this permit.

***Exemption from, or consent to partial compliance with, certain requirements**

The following exemption from, or a consent to partial compliance with, certain requirements of the Building Regulations 2018 was granted or given under regulation 229(2), 231(2), 233(3) or 234(2) of the Building Regulations 2018 in relation to the building work to which this permit applies:

Part or whole of building or place of public entertainment or building work exempt from, or given consent to partial compliance with, requirements of the Building Regulations 2018	Nature and scope of exemption
	<i>[Specify the relevant regulation/ BCA performance requirement which the building, place of public entertainment or building work is exempt from or may partially comply with]</i>

Protection work

Protection work **is/**is not required in relation to the building work proposed in this permit.

Inspection requirements

The mandatory notification stages are

[insert mandatory stages].

Occupation or use of building

An **occupancy permit/**certificate of final inspection is required prior to the occupation or use of this building.

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If an occupancy permit is required, the permit is required for the
*whole/*part of the building in relation to which the building work is
carried out.

Commencement and completion

This building work must commence by [*insert commencement date*].

If the building work to which this building permit applies is not commenced
by this date, this building permit will lapse unless an extension is applied
for and granted by the relevant building surveyor before this date under
regulation 59 of the Building Regulations 2018.

This building work must be completed by [*insert completion date*].

If the building work to which this building permit applies is not completed
by this date this building permit will lapse, unless an extension is applied
for and granted by the relevant building surveyor before this date under
regulation 59 of the Building Regulations 2018.

***Conditions**

This permit is subject to the following conditions

[*insert conditions*].

Relevant building surveyor

Name: [*insert full name*]

Address:

Email:

Building practitioner registration no.:

*Municipal district/*council name:

Permit no.:

Date of issue of permit:

Signature:

* *Delete if inapplicable*

FORM 3

Regulation 56

Building Act 1993

Building Regulations 2018

**NOTICE OF IMMINENT LAPSE OF BUILDING PERMIT—
COMMENCEMENT OF WORK**

TO:

Applicant for building permit [*insert full name*]

of [*insert address of service of the applicant*]

Building permit details

Building permit number:

Commencement date of building work:

Date issued:

A copy of the relevant building permit is **attached** to this notice.

Property to which building permit relates

Property details [*include title details as and if applicable*]

Registered proprietor

Number	Street/road	City/suburb/town	Postcode
Lot/s	LP/PS	Volume	Folio
Crown allotment	Section	Parish	County
Municipal district			

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Schedule 4—Forms

FROM:

I am the relevant building surveyor appointed in relation to the issue of the building permit.

In accordance with regulation 56 of the Building Regulations 2018, I am required to give the applicant for the building permit described above notice of the imminent lapse of the building permit because it is 30 days before the commencement date of the building work and an inspection of the first mandatory notification stage of the work has not been carried out.

The building work to which the building permit described above applies must commence by [*insert commencement date specified in building permit*] or any extension granted to this date by the relevant building surveyor under regulation 59 of the Building Regulations 2018.

If the building work to which the building permit described above applies is not commenced by the commencement date, including any extension to that date, the building permit described above will lapse.

A building permit that has lapsed is no longer in force for the purposes of the **Building Act 1993** and the Building Regulations 2018.

Relevant building surveyor

Name: [*insert full name*]

Address:

Email:

Building practitioner registration no.:

*Municipal district/*council name:

Signature:

Date:

** Delete whichever is inapplicable*

FORM 4

Regulation 57

Building Act 1993

Building Regulations 2018

**NOTICE OF IMMINENT LAPSE OF BUILDING PERMIT—
COMPLETION OF WORK**

TO:

Applicant for building permit [*insert full name*]
of [*insert address of service of the applicant*]

Building permit details

Building permit number:

Completion date of building work:

Date issued:

A copy of the relevant building permit is **attached** to this notice.

Property to which building permit relates

Property details [*include title details as and if applicable*]

Registered proprietor

Number	Street/road	City/suburb/town	Postcode
Lot/s	LP/PS	Volume	Folio
Crown allotment	Section	Parish	County
Municipal district			

Building Regulations 2018

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Schedule 4—Forms

FROM:

I am the relevant building surveyor appointed in relation to the issue of the building permit.

In accordance with regulation 57 of the Building Regulations 2018, I am required to give the applicant for the building permit described above notice of the imminent lapse of the building permit because it is 30 days before the completion date of the building work and an inspection of the final mandatory notification stage of the work has not been carried out.

The building work to which the building permit described above applies must be completed by [*insert completion date specified in building permit*] or any extension granted to this date by the relevant building surveyor under regulation 59 of the Building Regulations 2018.

If the building work to which the building permit described above applies is not completed by the completion date including any extension to that date, the building permit described above will lapse.

A building permit that has lapsed is no longer in force for the purposes of the **Building Act 1993** and the Building Regulations 2018.

Relevant building surveyor

Name: [*insert full name*]

Address:

Email:

Building practitioner registration no.:

*Municipal district/*council name:

Signature:

Date:

** Delete whichever is inapplicable*

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FORM 5

Regulation 64(3)

Building Act 1993

Building Regulations 2018

**DETERMINATION THAT COMBINED ALLOTMENT
IS ONE ALLOTMENT**

Given to

Owner of allotment 1 in combined allotment:

Telephone:

Email:

Postal address:

Postcode:

Owner of *allotment 2/*adjoining land in combined allotment:

Telephone:

Email:

Postal address:

Postcode:

[insert details of any other owners if more than 2 pieces of land in combined allotment]

**Details of land in combined allotment to which this determination
applies**

Allotment 1, property details *[include title details as and if applicable]*

Owner

Number	Street/road	City/suburb/town	Postcode
Lot/s	LP/PS	Volume	Folio
Crown allotment	Section	Parish	County
Municipal district			

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***Allotment 2/*adjoining land property details** [*include title details as and if applicable*]

Owner

Number	Street/road	City/suburb/town	Postcode
--------	-------------	------------------	----------

Lot/s	LP/PS	Volume	Folio
-------	-------	--------	-------

Crown allotment	Section	Parish	County
-----------------	---------	--------	--------

Municipal district

[*insert details of any additional allotments or land to which the application applies*]

DETERMINATION

I am the municipal building surveyor and I have determined that the combined allotment to which this determination applies can be treated as one allotment for the purposes of the **Building Act 1993** and the Building Regulations 2018.

In making this determination I have considered the matters set out in regulation 64(2) of the Building Regulations 2018 and make the following statements:

- (1) The proposed building work to be carried out on the combined allotment is [*insert description of proposed building work*].
- (2) I am satisfied that the proposed building work will not adversely impact on the structural adequacy of any existing building on the combined allotment for the following reason(s) [*insert reasons*].
- (3) I am satisfied that reasonable provision will be made for the amenity of any building on the combined allotment for the following reason(s) [*insert reasons*].
- (4) I am satisfied that reasonable provision will be made for the safety and health of people using any building on the combined allotment for the following reason(s) [*insert reasons*].
- (5) I am satisfied that reasonable provision will be made for avoiding the spread of fire to or from any adjoining building on the combined allotment for the following reason(s) [*insert reasons*].

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Made by *municipal building surveyor/*private building surveyor

Name: [*insert full name*]

Address:

Email:

Building practitioner registration no.:

*Municipal district/*council name:

Related building permit no. (if issued before determination made):

Signature:

Date:

** Delete if inapplicable*

FORM 6

Regulation 111(4)

Building Act 1993

Building Regulations 2018

**DETERMINATION THAT PROTECTION WORK
IS REQUIRED**

Issued to

Owner (referred to throughout this determination as the *Owner*)

Telephone

Email

Postal address

Postcode

*Agent of owner

Telephone

Email

Postal address

Postcode

Property subject to building permit application (referred to throughout this determination as the *Owner's property*)

Property details [*include title details as and if applicable*]

Registered proprietor

Number	Street/road	City/suburb/town	Postcode
--------	-------------	------------------	----------

Lot/s	LP/PS	Volume	Folio
-------	-------	--------	-------

Crown allotment	Section	Parish	County
-----------------	---------	--------	--------

Municipal district

Building permit application details (referred to throughout this determination as the *Owner's building permit application*)

Applicant

Date of application

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Nature of building work

Construction of a new building	☐	Alterations to an existing building	☐
Demolition of a building	☐	Removal of a building	☐
Extension to an existing building	☐	Change of use of an existing building	☐
Re-erection of a building	☐	Construction of swimming pool or spa barrier	☐
Construction of swimming pool or spa	☐		
Other	☐		

Details of each adjoining property (referred to throughout this determination as an *adjoining property*)

[list each adjoining property, include title details as and if applicable]

Number	Street/road	City/suburb/town	Postcode
Lot/s	LP/PS	Volume	Folio
Crown allotment	Section	Parish	County
Municipal district			

MATTERS CONSIDERED IN MAKING THIS DETERMINATION

In making this determination I have considered the following matters set out in regulation 112 of the Building Regulations 2018:

Allotment plan provided to me under regulation 25	☐	Demolition required as part of the proposed building work	☐
Allotment plan provided to me under regulation 26	☐	Excavation required as part of the proposed building work	☐
Specifications describing materials and methods to be used in the proposed building work	☐	Any proposed building work in relation to party walls and retaining walls	☐
Any certificate under section 238 of the Building Act 1993 from the engineer who designed the building work who is a registered building practitioner in the category of engineer, class of engineer (civil)	☐	Any certificate under section 238 of the Building Act 1993 from an independent engineer who is a registered building practitioner in the category of engineer, class of engineer (civil), certifying that the structural design of the building work complies with that Act and the Building Regulations 2018	☐
The nature and likely extent of any damage or other adverse effect on the stability or otherwise of an			

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adjoining property that may be
caused by the proposed building
work

☐[†]

Other matters that I consider
appropriate to determine the
need for protection work

☐[†]

DETERMINATION

1. I am the relevant building surveyor appointed on *[insert date]* under Part 6 of the **Building Act 1993** by or on behalf of the Owner in relation to the Owner's building permit application.
2. I am required by the Building Regulations 2018 to determine if protection work is required for any adjoining property as a result of building work proposed in the Owner's building permit application.
3. I have determined that the Owner must carry out protection work in respect of each adjoining property identified in this determination in accordance with Part 7 of the **Building Act 1993** and Part 7 of the Building Regulations 2018.
4. The proposed building work that gives rise to the need for protection work is *[insert description of all building work proposed in the Owner's building permit application which poses a risk of significant damage to an adjoining property identified above]*.
5. This determination triggers the protection work process set out in Part 7 of the **Building Act 1993**, which is supported by Part 7 of the Building Regulations 2018.

Made by relevant building surveyor

Name: *[insert full name]*

Address:

Email:

Building practitioner registration no.:

*Municipal district/*council name:

Related building permit no. (if known):

Date of issue of determination:

Signature:

** Delete if inapplicable*

[†] Tick if applicable

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FORM 7

Regulation 113

Building Act 1993

Building Regulations 2018

PROTECTION WORK NOTICE

To

Adjoining owner

Postal address

Postcode

Relevant building surveyor

Postal address

Postcode

Contact person

Telephone

Adjoining owner's property details (the *adjoining property*)

Number	Street/road	City/suburb/town	
Lot/s	LP/PS	Volume	Folio
Crown allotment	Section	Parish	County
Municipal district			

From

*Owner/*agent

Name of owner [*insert full name*]

*ACN/*ARBN

Postal address

Postcode

Contact person

Telephone

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Owner's property details

Number	Street/road	City/suburb/town	
Lot/s	LP/PS	Volume	Folio
Crown allotment	Section	Parish	County
Municipal district			
*Name of agent			
*ACN/*ARBN			
Postal address			
			Postcode
Contact person		Telephone	

NOTICE

In accordance with section 84 of the **Building Act 1993**, I give notice of my intention to carry out the following building work on my property and request your agreement to the proposed protection work which affects your adjoining property.

Details of proposed building work

[insert details including details about damage etc. that may be caused to adjoining property]

Details of proposed protection work

[insert the nature, location, time and duration of the proposed protection work, including the extent to which access to the adjoining property will be required for the purpose of undertaking the proposed protection work]

Information about protection of an adjoining owner under the Building Act 1993 in relation to proposed protection work

In accordance with section 92 of the **Building Act 1993**, at any time after this notice is given to the adjoining owner, the relevant building surveyor must make available to the adjoining owner, on request, for inspection, without charge, any plans, drawings and specifications of the proposed building work in the possession or control of the relevant building surveyor. The relevant building surveyor's name and contact details are on page 1 of this notice.

If the proposed protection work is agreed to by the adjoining owner or determined as being appropriate by the relevant building surveyor under section 87(1) of the **Building Act 1993** or by the Building Appeals Board

under section 141 of the **Building Act 1993** (as the case requires), the owner must—

- (a) before the commencement of any protection work—
 - (i) ensure that a contract of insurance is in force in accordance with section 93 of the **Building Act 1993** against damage by the protection work to the adjoining property and other liabilities described in that section; and
 - (ii) make a full and adequate survey of the adjoining property in accordance with section 94 of the **Building Act 1993**; and
- (b) pay to an adjoining owner all costs and expenses necessarily incurred by the adjoining owner in assessing proposed protection work and in supervising the carrying out of protection work in relation to an adjoining property in accordance with section 97 of the **Building Act 1993**; and
- (c) compensate an adjoining owner or an adjoining occupier for inconvenience, loss or damage suffered by the adjoining owner or adjoining occupier in connection with the carrying out of protection work in accordance with section 98 of the **Building Act 1993** or an order of the Building Appeals Board under section 159 of that Act.

Signature

Signature of *owner/*owner's agent

Date

** Delete if inapplicable*

FORM 8

Regulation 114

Building Act 1993

Building Regulations 2018

PROTECTION WORK RESPONSE NOTICE

To

*Owner/*owner's agent

Postal address

Postcode

Address of owner's property on which building work is to be carried out

Number

Street/road

City/suburb/town

Relevant building surveyor

Postal address

Postcode

From

*Adjoining owner/*adjoining owner's agent

Postal address

Postcode

Contact person

Telephone

Address of my adjoining property

Number

Street/road

City/suburb/town

Response from adjoining owner

In accordance with section 85 of the **Building Act 1993**, I am responding to the notice served on me by the owner under section 84 of that Act and—

- (a) agree to the proposed protection work ☐†
- (b) disagree with the proposed protection work ☐†
- (c) request the following further information ☐†

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Signature

Signature of *adjoining owner/*adjoining owner's agent

Date

** Delete if inapplicable*

[†] Tick if applicable

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FORM 9

Regulation 115(a)

Building Act 1993

Building Regulations 2018

**NOTICE OF DETERMINATION UNDER SECTION 87
OF THE ACT**

To

*Owner/*owner's agent

Postal address

Postcode

Address of owner's property on which building work is to be carried out

Number

Street/road

City/suburb/town

Relevant building surveyor

Postal address

Postcode

And to

*Adjoining owner/*adjoining owner's agent

Postal address

Postcode

Contact person

Telephone

Address of adjoining property

Number

Street/road

City/suburb/town

DETERMINATION

1. I am the relevant building surveyor appointed on *[insert date]* under Part 6 of the **Building Act 1993** by or on behalf of the owner, *[insert full name of owner of the property on which building work is being carried out]*.

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-
2. On *[insert date]* I received from the adjoining owner a notice under section 85(1)(b) of the **Building Act 1993** (the *adjoining owner's notice*).
 3. In the adjoining owner's notice, the adjoining owner *disagreed with the proposed protection work/*required more information to be given to enable the proposal for protection work to be considered by me. I **attach** a copy of the adjoining owner's notice to this determination.
 4. As a result of the adjoining owner's notice, I am required by the **Building Act 1993** to examine the owner's proposal for protection work.
 5. I received the owner's proposal for protection work under section 84 of the **Building Act 1993** on *[insert date]* (the *owner's proposal for protection work*). I **attach** the owner's proposal for protection work to this determination.
 6. In making this determination, I have examined the owner's proposal for protection work.
 - *7. Before making this determination, I requested the following additional information from the owner under section 87(2)(a) of the **Building Act 1993** *[specify relevant information]*. I received this information on *[insert date]*.
 - *8. On *[insert date]*, I made a copy of the additional information (referred to in paragraph 7 above) available to the adjoining owner.
 - *9. In determining the appropriateness or otherwise of the owner's proposal for protection work, I made the following inquiries under section 87(3) of the **Building Act 1993** *[specify any relevant inquiry made]*.
 10. After considering all matters required of me under the **Building Act 1993** and the Building Regulations 2018, I determine the owner's proposal for protection work is *appropriate/*not appropriate.

Made by relevant building surveyor

Name: *[insert full name]*

Address:

Email:

Authorised by the Chief Parliamentary Counsel

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Building practitioner registration no.:

*Municipal district/*council name:

Related building permit no. (if known):

Date determination made:

Signature:

Rights of appeal under section 141 of the Building Act 1993

An owner required to carry out protection work or an adjoining owner may appeal to the Building Appeals Board against—

- (a) a determination under section 87 of the **Building Act 1993** as to the appropriateness of the work; or
- (b) a declaration under section 89 of the **Building Act 1993**; or
- (c) a failure, within a reasonable time, or refusal to make that determination or declaration; or
- (d) a request under section 87 of the **Building Act 1993** to give more information.

Appeal period

For the purposes of section 146 of the **Building Act 1993**, the prescribed appeal period for an appeal against a determination by the relevant building surveyor under section 87(1) of the **Building Act 1993** is 14 days from the day the owner and the adjoining owner are given notice of the determination.

A determination by the relevant building surveyor under section 87(1) of the **Building Act 1993**, does not take effect until—

- (a) the end of the prescribed appeal period of 14 days, if there is no appeal; or
- (b) the decision is affirmed on appeal.

** Delete if inapplicable*

FORM 10

Regulation 178

Building Act 1993

Building Regulations 2018

EMERGENCY ORDER

This emergency order is made under section 102 of the **Building Act 1993**.

TO:

The *owner/*occupier/*builder/*person or class of person [*insert full name or describe class of person*]

Of [*insert address for service on the owner, occupier, builder or person or class of person*]

***AND TO:**

Any other person or class of person [*insert full name or describe class of person*]

Of [*insert address for service on person or class of person*]

FROM:

I am the municipal building surveyor of [*insert name of municipal district*].

The municipal building surveyor is authorised to cause an emergency order to be served on the *owner/*occupier/*builder of the *building/*land/*place of public entertainment to which this order applies under Division 1 of Part 8 of the **Building Act 1993**.

LOCATION OF THE *BUILDING/*LAND/*PLACE OF PUBLIC ENTERTAINMENT TO WHICH THIS ORDER APPLIES:

Number	Street/road	City/suburb/town	Postcode
Lot/s	LP/PS	Volume	Folio
Crown allotment	Section	Parish	County
Municipal district			

ORDER:

I, being the municipal building surveyor, order that:

- *1. By *[insert time]* on *[insert date]*, the *owner/*occupier of *[insert description and address of building, land or place of public entertainment]* must evacuate the *building/*land/*place of public entertainment.
- *2. By *[insert time]* on *[insert date]*, *[specify the person or class of person served with this order]* must vacate the *building/*land/*place of public entertainment *[insert description and address of building, land or place of public entertainment]*.
Note: This order may only be made if order 1 is made.
- *3. At *[insert time]* on *[insert date]*, entry into the *building/*land/*place of public entertainment *[insert description and address of building, land or place of public entertainment]* by *[specify person or class of person served with this order]* is prohibited for a period of *[insert period of time of prohibition]*.
- *4. At *[insert time]* on *[insert date]*, use of the *building/*land/*place of public entertainment *[insert description and address of building, land or place of public entertainment]* by *[specify person or class of person served with this order]* is prohibited for a period of *[insert period of time of prohibition]* for *[specified prohibited use]*.
- *5. At *[insert time]* on *[insert date]*, occupation of the *building/*land/*place of public entertainment *[insert description and address of relevant building, land or place of public entertainment]* by *[specify person or class of person served with this order]* is prohibited for a period of *[insert period of time of prohibition]*.
- *6. The *owner/*occupier of the place of public entertainment *[insert description and address of place of public entertainment]* must not conduct nor allow the conduct of a public entertainment at this place of public entertainment.
- *7. The *owner/*occupier of the place of public entertainment *[insert description and address of place of public entertainment]* must immediately cease to conduct *all/*specified public entertainment *[specify public entertainment to be ceased if applicable]* at this place of public entertainment.

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-
- *8. By *[insert time]* on *[insert date]*, the *owner/*occupier must stop building work on the *building/*land/*place of public entertainment *[insert description and address of building, land or place of public entertainment]* that is *[insert description of building work that must stop]*.
- *9. By *[insert time]* on *[insert date]*, the *owner/*occupier of *[insert description and address of building, land or place of public entertainment]* must carry out the following building work or other work *[insert detailed description of building work or other work required to be carried out by this order]* to make the *building/*land/*place of public entertainment safe.
- *10. By *[insert time]* on *[insert date]*, the *owner/*occupier of *[insert description and address of building, land or place of public entertainment]* must carry out the following building work or other work *[insert detailed description of building work or other work required to be carried out by this order]* to secure the *building/*land/*place of public entertainment from access.
- *11. By *[insert time]* on *[insert date]*, the owner must cause the *building/*land/*place of public entertainment *[insert description and address of relevant building, land or place of public entertainment]* to be inspected by *[name of specified person]*.
- *12. By *[insert time]* on *[insert date]*, the *owner/*builder must cause *[specified material]* used in the *building/*land/*place of public entertainment *[insert description and address of building, land or place of public entertainment]* to be tested by *[name of specified person]*.

***INSPECTION DETAILS:**

*The date and time of any inspection of the *building/*land/*place of public entertainment carried out by me, as the municipal building surveyor, are:

Time of inspection:

Date of inspection:

[list any inspections carried out by municipal building surveyor]

*The date and time of any inspection of the *building/*land/*place of public entertainment relied on by me as the municipal building surveyor for the purpose of making this order, and the name and qualifications of the person or persons who conducted the inspection, are:

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Time of inspection:

Date of inspection:

Name of person/persons:

Qualification(s) of person/persons:

Building practitioner registration no. of person/persons:

[List details of any inspections relied on by the municipal building surveyor]

REASON(S) WHY THIS EMERGENCY ORDER WAS MADE:

In accordance with section 102 of the **Building Act 1993**, I am of the opinion that this order is necessary because of a—

***Danger to life arising out of the condition of the *building/*land/*place of public entertainment**

[state reason(s) why the condition of the building, land or place of public entertainment causes a danger to life]

***Danger to life arising out of the use of the *building/*land/*place of public entertainment**

[state reason(s) why the use of the building, land or place of public entertainment causes a danger to life]

***Danger to life arising out of a proposed use of the *building/*land/*place of public entertainment**

[state reason(s) why a proposed use of the building, land or place of public entertainment may cause a danger to life]

***Danger to property arising out of the condition of the *building/*land/*place of public entertainment**

[state reason(s) why the condition of the building, land or place of public entertainment causes a danger to property]

***Danger to property arising out of the use of the *building/*land/*place of public entertainment**

[state reason(s) why the use of the building, land or place of public entertainment causes a danger to property]

***Danger to property arising out of a proposed use of the *building/*land/*place of public entertainment**

[state reason(s) why a proposed use of the building, land or place of public entertainment causes a danger to property]

Authorised by the Chief Parliamentary Counsel

EMERGENCY ORDER MADE AND SERVED BY:

The municipal building surveyor

Name: *[insert full name]*

Address:

Email:

Building practitioner registration no.:

Municipal district:

Signature:

Emergency order no.:

Date of making:

** Delete if inapplicable*

FORM 11

Regulation 180

Building Act 1993

Building Regulations 2018

BUILDING NOTICE

This building notice is served under section 106 of the **Building Act 1993**.

TO:

The owner [*insert full name*]

Of [*insert address for service on the owner*]

FROM:

*I am the private building surveyor appointed to carry out functions under the **Building Act 1993** in relation to the *building/*land/*place of public entertainment which is the subject of this notice.

*I am the municipal building surveyor of [*insert name of municipal district*].

I am authorised to cause a building notice to be served on you, as owner of the *building/*land/*place of public entertainment to which this notice applies, under Division 2 of Part 8 of the **Building Act 1993**.

LOCATION OF THE *BUILDING/*LAND/*PLACE OF PUBLIC ENTERTAINMENT TO WHICH THIS NOTICE APPLIES:

Number	Street/road	City/suburb/town	Postcode
Lot/s	LP/PS	Volume	Folio
Crown allotment	Section	Parish	County
Municipal district			

***INSPECTION DETAILS:**

*The date and time of an inspection of the *building/*land/*place of public entertainment carried out by myself as the relevant building surveyor was:

Time of inspection:

Date of inspection:

[*list any inspections carried out by the relevant building surveyor*]

Building Regulations 2018

S.R. No. 38/2018

Schedule 4—Forms

*The date and time of an inspection relied on by myself as the relevant building surveyor for the purpose of serving this notice, and the name and qualifications of the person or persons who conducted the inspection, are:

Time of inspection:

Date of inspection:

Name of person/persons:

Qualification(s) of person/persons:

Building practitioner registration no. of person/persons:

[list details of any inspections relied on by the relevant building surveyor]

REASON(S) WHY THIS NOTICE WAS SERVED:

In accordance with section 106 of the **Building Act 1993**, I am of the opinion that the following *circumstance/*circumstances exist(s):

***Building work carried out without a building permit being issued and in force under the Building Act 1993**

The following building work has been carried out on the *building/*land/*place of public entertainment without a building permit as required by the **Building Act 1993**

[insert description here of building work carried out on the relevant building, land or place of public entertainment without a building permit, including details of when this building work was carried out]

***Building work carried out in contravention of a building permit**

Building work has been carried out on the *building/*land/*place of public entertainment in contravention of a building permit.

The particulars of the relevant building permit are:

Building permit no.:

Date of issue of building permit:

The building work that contravenes the building permit is: *[insert description of relevant building work and state reason(s) why the building work does not comply with the building permit identified above]*

A copy of the relevant building permit is **attached** to this order.

***Building work has been carried out in contravention of the Building Act 1993**

The following building work has been carried out on the *building/*land/*place of public entertainment in contravention of the **Building Act 1993**:

Authorised by the Chief Parliamentary Counsel